

Tentative Rulings for June 23, 2026 Department 3

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 3 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 692 7358**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2505619	LINDMAN VS THE ESTATE OF DAVID A. CONTIGIANI	MOTION TO DEPOSIT FUNDS WITH COURT AND ORDER OF DISCHARGE AND DISMISSAL

Tentative Ruling:

The Motion of Chase is granted. Chase is to deposit the sum of \$438,561.81 less attorney fees and costs of \$5125.55. for 10 hours of attorney time and the costs as presented, Upon making the deposit, Chase will be discharged of liability to any party to this action.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2203353	BLOOMAGE BEVERLY HILLS INVESTMENT INC. VS GUO	MOTION FOR NEW TRIAL

Tentative Ruling:

The Motion for new trail is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2405170	RODRIGUEZ VS CITY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT

Tentative Ruling:

This lawsuit is about the assault and battery of Plaintiff by an unidentified assailant. Although the assailant is unknown, Plaintiff has alleged that the person was an employee of Defendant Ability. The only cause of action alleged against Ability is the Fourth Cause of Action for Negligent Hiring, Supervision and Retention of an Unfit Employee and/or Vicarious Liability. (Separate Statement of Undisputed Material Facts ("UMF") No. 1; Exhibit A, Complaint, ¶¶ 39-42.) Thus, Plaintiff's only claim against Ability is premised on the assailant being an Ability employee.

On September 13, 2024, Plaintiff filed a Complaint for (1) assault; (2) battery; (3) intentional infliction of emotional distress; (4) negligent hiring, supervision & retention of an unfit employee; (5). Negligence and (6) premises liability.

Plaintiff has identified his assailant as a black male, approximately six feet tall, in a grey hoodie. (UMF No. 2, 3.) The police report corroborates Plaintiff's description, as it also states that the suspect was a Black male, 6'1" and 140 pounds. (UMF Nos. 4, 5.)